Claim to an Employment Tribunal

Form ET1

For office use — Case number: 2204187/2025 · Tribunal office: London Central · Date received: 18 November 2025

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1 Your details (the claimant)

1.1 Title / First name / Surname: Mr Martin Hale

1.2 Date of birth: 4 March 1967

1.3 Address: 14 Carlisle Gardens, London N10 3QP

1.4 Contact: m.hale@outlook.com · 07700 900614

1.5 How would you prefer us to contact you? Email

2 Respondent's details (the employer)

2.1 Name of employer: Wexford Holdings Limited (company number 06122418)

2.2 Address: Marlowe House, 4 Fenchurch Avenue, London EC3M 5BN

2.3 ACAS early conciliation certificate number: R123456/25/78

3 Employment details

3.1 Employment start date: 1 September 2014

3.2 Employment end date: 31 October 2025

3.3 Job title: Chief Operating Officer

3.4 Hours per week / gross annual pay: Full-time · £185,000 gross per annum

3.5 Were you in the employer's pension scheme? Yes — employer contribution of 8% of salary

3.6 Notice period: Six months

4 Type of claim

The claimant brings claims of: (a) unfair dismissal under section 94 of the Employment Rights Act 1996; and (b) direct age discrimination under sections 13 and 39 of the Equality Act 2010.

5 Details of claim

5.1 The claimant was employed by the respondent from 1 September 2014 until his dismissal with effect from 31 October 2025, latterly as Chief Operating Officer, with responsibility for the respondent's operations, supply chain, procurement and facilities functions. Throughout his employment his performance was appraised as strong or as exceeding expectations; his February 2025 appraisal recorded an overall rating of "exceeds expectations".

5.2 Following the appointment of a new Group Chief Executive in March 2025, the claimant was progressively excluded from executive decision-making. On 2 July 2025 he was removed, without notice or explanation, from the Operations Committee which he had chaired. On 21 August 2025 three of his direct reports were reassigned to other executives without consultation. He was not invited to the strategy offsite held on 4–5 September 2025, despite the operations function being within its scope and despite his having attended every previous offsite since 2015.

5.3 On 28 August 2025, in a discussion about the future of the operations function, a member of the executive team told the claimant that the Board wanted "a fresh generation of leadership" to take the function forward. The claimant, who is 58, understood this to mean that his age was regarded as a reason to remove him.

5.4 On 12 September 2025 the claimant raised a formal grievance. The respondent did not uphold the grievance. On or about 31 October 2025 the claimant was dismissed, the respondent asserting that his role was redundant following a reorganisation of the operations function.

5.5 Unfair dismissal: the claimant contends that the asserted reorganisation was not the true reason, or not the whole reason, for his dismissal, and that in any event the respondent failed to follow a fair procedure. There was no genuine consultation before his responsibilities were removed; the removal of his duties preceded any consultation and indicates a predetermined decision; no suitable alternative employment was considered; and the grievance and dismissal processes were a formality. The dismissal was therefore unfair under section 98 of the Employment Rights Act 1996.

5.6 Age discrimination: the claimant contends that age was a material factor in his treatment and dismissal. He relies on the "fresh generation of leadership" remark of 28 August 2025, the pattern of his exclusion from decision-making, and the inconsistency between that treatment and his strong appraisal record. These are facts from which, in the absence of an adequate explanation, the Tribunal could conclude that the respondent contravened sections 13 and 39 of the Equality Act 2010, so that under section 136 the burden of proof passes to the respondent.

5.7 Remedy: the claimant seeks compensation for unfair dismissal (a basic award and a compensatory award), and for age discrimination (loss of earnings, which is uncapped, an award for injury to feelings, and interest). A schedule of loss is served with this claim. The claimant reserves the right to seek reinstatement or re-engagement and to amend this claim.

Signed: M. Hale (by the claimant's representative, Ashworth Quinn LLP, ref EB/HALE/0925)

Date: 18 November 2025